OPEN LETTER · EYE ON SHOALHAVEN COUNCIL

Cr Clancy asked whether outside party pressure she described has been reported

Sent 25 September 2026 · To Cr Clancy, Shoalhaven City Council · Response requested by 16 October 2026

Steve Prothero
Eye on Shoalhaven Council
steveprothero.substack.com

25 September 2026

Cr Selena Clancy
Shoalhaven City Council
selena.clancy@shoalhaven.nsw.gov.au

Dear Councillor Clancy,

Your statement of 22 September 2026 said that over recent months you have experienced and witnessed conduct you found "inappropriate, intimidating and deeply distressing".

It also said you respect "the reasons they have outlined" for the Mayor and Cr Dunn leaving the Shoalhaven Independents Group. The Mayor's stated reasons included "outside party influences connected to the Group".

This letter is about people outside the Council only.

The Model Code of Conduct (clauses 9.10 and 9.11) restricts councillors from making allegations about suspected breaches of the Code other than through a complaint under the Procedures. I am not asking you to make any allegation about any councillor or member of staff, or to disclose anything about a Code of Conduct complaint. People outside the Council are not bound by the Code, and the questions below concern them alone.

The law on improperly influencing a councillor

Below are the main provisions that apply to anyone, inside or outside a council, who seeks to influence a councillor or council official by improper means.

I set them out not to suggest that any of them has been breached, which only the relevant authority or a court can decide, but so that residents understand why it matters whether this has been reported.

Blackmail — Crimes Act 1900 (NSW), s 249K(1)(b). It is an offence to make an unwarranted demand with menaces with the intention of influencing the exercise of a public duty. A "public duty" includes any power, authority, duty or function conferred on a person as the holder of a public office (s 249O). "Menaces" include an express or implied threat of any

action detrimental or unpleasant to another person (s 249M). Maximum penalty: 10 years' imprisonment.

Corrupt benefits — Crimes Act 1900 (NSW), s 249B(2). It is an offence to corruptly give, or offer to give, a benefit to an agent as an inducement or reward for doing or not doing something, or for showing favour or disfavour to any person, in relation to the affairs of the agent's principal. For this Part of the Act a councillor, including a mayor, is an agent of their council. Soliciting or receiving such a benefit is an offence under s 249B(1). Maximum penalty: 7 years' imprisonment.

Stalking or intimidation — Crimes (Domestic and Personal Violence) Act 2007 (NSW), s 13. It is an offence to stalk or intimidate another person with the intention of causing them to fear physical or mental harm. Intimidation includes harassment, and approaches by telephone, text message or email that cause a person to fear for their safety (s 7). The offence applies to anyone, not only in domestic settings. Maximum penalty: 5 years' imprisonment, 50 penalty units, or both.

Corrupt conduct — Independent Commission Against Corruption Act 1988 (NSW), s 8(1)(a). Corrupt conduct includes conduct of any person, whether or not a public official, that adversely affects or could adversely affect the honest or impartial exercise of official functions by a public official. This is not itself an offence, but it brings people outside council, including party figures, within ICAC's jurisdiction, subject to the limits in s 9.

This letter is separate from any other correspondence you have received from me this week, and it does not replace it.

My questions are:

1. Did any of the conduct you described come from people outside the Council, including the "outside party influences" the Mayor referred to? A yes or no is enough.

1. If it did, will you name the party, and the person or persons involved? If you will not, why not?

1. If you will not name them, what did they want from you?

1. Has that conduct been reported to any authority able to deal with the matters above, such as the Independent Commission Against Corruption, the NSW Electoral Commission, NSW Police or the Office of Local Government? I am not asking for the content of any report, only whether one has been made and to which body.

I will publish whatever response is received, including none.

Yours sincerely,

Steve Prothero
Publisher, Eye on Shoalhaven Council